

**FOR NEW LICENSES AND TRANSFER  
LICENSE AND/OR PERMIT APPLICATION  
FOR LIQUOR, COUNTY MALT BEVERAGE, LIMITED, WINERY OR MICROBREWERY**

| <b>To be completed by the City, Town or County Clerk:</b>                                                                    |                                 |                          | Formerly Held by: _____                                                                                                                                                                                                 |  |
|------------------------------------------------------------------------------------------------------------------------------|---------------------------------|--------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|
| Date Filed: <u>9/30/15</u> <u>MC 124227</u>                                                                                  |                                 |                          | Applicant: <u>Chet Halvarson Properties, LLC</u>                                                                                                                                                                        |  |
| Basic Fee:                                                                                                                   | Annual Fee<br>\$ <u>2500.00</u> | Prorated Fee<br>\$ _____ | Trade Name (dba): <u>T.B.D.</u>                                                                                                                                                                                         |  |
| Add'l Dispensing Room Fee:                                                                                                   | \$ _____                        | \$ _____                 | Premise Address: <u>800 W. 17<sup>th</sup> Street</u>                                                                                                                                                                   |  |
| Transfer Fee:                                                                                                                | \$ _____                        | \$ _____                 | City: <u>Cheyenne</u> State: <u>WY</u> Zip: <u>82001</u> County: <u>Laramie</u>                                                                                                                                         |  |
| Total License Fee Collected                                                                                                  | \$ <u>2500.00</u>               | \$ _____                 | Mailing Address: <u>PO Box 233</u>                                                                                                                                                                                      |  |
| Publishing Fee Collect:                                                                                                      | \$ <u>100.00</u>                | \$ _____                 | City: <u>Cheyenne</u> State: <u>WY</u> Zip: <u>82003</u>                                                                                                                                                                |  |
| Required Attachments Received: Yes <input checked="" type="checkbox"/>                                                       |                                 |                          | Business Telephone Number: <u>307.434.6074</u>                                                                                                                                                                          |  |
| Advertising Dates(2 wks): <u>Oct 20, 27, 2015</u>                                                                            |                                 |                          | Fax Number: _____                                                                                                                                                                                                       |  |
| Hearing Date: <u>Nov 19 12015</u>                                                                                            |                                 |                          | E-Mail Address: <u>cheth@sceptersupply.com</u>                                                                                                                                                                          |  |
| Local Licensing Number: _____                                                                                                |                                 |                          | Licensing Authority: Begin publishing promptly. As W.S. 12-4-104(d) specifies: <b>NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.</b> |  |
| For the license term: <u>upon issuance</u>                                                                                   |                                 |                          |                                                                                                                                                                                                                         |  |
| Through: <u>March 31, 2016</u>                                                                                               |                                 |                          |                                                                                                                                                                                                                         |  |
| A copy must be immediately forwarded to:<br>State of Wyoming Liquor Division<br>6601 Campstool Rd.<br>Cheyenne WY 82002-0110 |                                 |                          |                                                                                                                                                                                                                         |  |

| FILING FOR                                                  | TYPE OF LICENSE OR PERMIT<br>(CHOOSE ONLY ONE)                                | To Assist the Liquor Division with scheduling inspections:           |
|-------------------------------------------------------------|-------------------------------------------------------------------------------|----------------------------------------------------------------------|
| <input checked="" type="checkbox"/> NEW                     | <input checked="" type="checkbox"/> RETAIL LIQUOR LICENSE                     | <b>DO YOU OPERATE?</b>                                               |
| <input type="checkbox"/> TRANSFER LOCATION                  | <input type="checkbox"/> on-premise only (Bar)                                | <input checked="" type="checkbox"/> FULL TIME (e.g. Jan through Dec) |
| <input type="checkbox"/> TRANSFER OWNERSHIP                 | <input type="checkbox"/> off-premise only (Package Store)                     | <input type="checkbox"/> SEASONAL/PART-TIME                          |
| FILING IN (CHOOSE ONLY ONE)                                 | <input checked="" type="checkbox"/> combination on/off premise (Both)         | (specify months of operation)                                        |
| <input checked="" type="checkbox"/> CITY OF <u>Cheyenne</u> | <input type="checkbox"/> RESTAURANT LIQUOR LICENSE                            | from <u>Jan</u> to <u>Dec</u>                                        |
| <input type="checkbox"/> COUNTY OF _____                    | <input type="checkbox"/> RESORT LIQUOR LICENSE                                | DAYS OF WEEK (e.g. Mon through Sat)                                  |
| FILING AS (CHOOSE ONLY ONE)                                 | <input type="checkbox"/> COUNTY RETAIL or SPECIAL MALT BEVERAGE PERMIT        | <u>Mon through Sun</u>                                               |
| <input type="checkbox"/> INDIVIDUAL                         | <input type="checkbox"/> VETERANS CLUB                                        | HOURS OF OPERATION (e.g. 10a - 2a)                                   |
| <input type="checkbox"/> PARTNERSHIP                        | <input type="checkbox"/> FRATERNAL CLUB                                       | <u>7a - 12a</u>                                                      |
| <input type="checkbox"/> CORPORATION                        | <input type="checkbox"/> GOLF CLUB                                            |                                                                      |
| <input type="checkbox"/> LTD PARTNERSHIP                    | <input type="checkbox"/> SOCIAL CLUB                                          |                                                                      |
| <input type="checkbox"/> ASSOCIATION                        | <input type="checkbox"/> MICROBREWERY                                         |                                                                      |
| <input type="checkbox"/> ORGANIZATION                       | <input type="checkbox"/> WINERY                                               |                                                                      |
|                                                             | <input type="checkbox"/> BAR AND GRILL                                        |                                                                      |
|                                                             | <input type="checkbox"/> LOCATED WITHIN 5 MILES OF CITY (County License only) |                                                                      |

**1. Location of License:**

(a) Give a description of the dispensing room and state where it is located in the building (e.g. 10 x 12 room in SE corner of 1st floor of building). If the building is not in existence, provide the location and an architect's drawing or suitable plans of the room and premises to be licensed: W.S. 12-4-102(a)(i): (Please submit a drawing of the establishment that includes the dispensing room)

Approx. 50' x 50' room in SE corner of building on First Floor Attached

(b) If Winery or Microbrewery, also list manufacturing facility (e.g. MFG: 10' X 12' room in SW portion of bldg.)

(c) Do you have an additional dispensing room? ☒ YES ☐ NO. If yes, provide description and location:  
Upstairs, Rooftop patio area approx 20' x 25' room in SE corner of building on 2<sup>nd</sup> Floor

(d) Provide the legal description and the zoning of the site where the applicant will conduct business:  
All of Block 349, Original City, except N 1/2 of Lot 1 Current Zoning is LI, but are seeking change to mixed use

**2. Do you W.S. 12-4-103 (a) (iii):**

- (1) OWN the building in which sales room is located?  
(2) LEASE the building in which sales room is located?

☐ YES (own)  
☒ YES (lease)

(A) DATE lease expires January 2028 located on page 1 paragraph 2 of lease document.

(B) Provision for SALE of alcoholic or malt beverages located on page 2 paragraph 2 of lease.

NOTE: Attach a true copy of the lease to application. Lease MUST contain provision for SALE OF ALCOHOLIC or MALT BEVERAGES and be valid THROUGH the TERM OF THE LICENSE W.S. 12-4-103(a)(iii).

3. Have you already assigned, leased, transferred or do you intend to assign, lease, transfer, contract or in any other manner agree with any person or firm other than yourself as licensee to operate and assert control or partial control of the license and the licensed room to carry on the licensed liquor business? ☐ YES ☒ NO
4. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403
- (a) Hold any interest in the license applied for? ☐ YES ☒ NO
  - (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business? ☐ YES ☒ NO
  - (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
  - (d) If you answered YES to any of the above, explain fully and submit any documents in connection therewith: \_\_\_\_\_
- 
5. Does applicant have any interest or intent to acquire an interest in any other retail liquor license to be issued by this licensing authority? W.S. 12-4-103(b) ☐ YES ☒ NO  
If "YES", explain: \_\_\_\_\_
- 
6. Is applicant a mayor, member of a city or town council, or member of the board of county commissioners within the jurisdiction of this licensing authority? W.S. 12-4-103(a)(i) ☐ YES ☒ NO
- 
7. Is applicant employed by the State, City or Town, or County as a law enforcement officer, or hold office as a law enforcement officer through election? W.S. 12-4-103(a)(ii) ☐ YES ☒ NO

**RESTAURANT OR BAR AND GRILL LICENSE: Complete questions 8(a) and 8(b):**

8. (a) Have you submitted a valid food service permit upon application?  
W.S. 12-4-407(a) W.S. 12-4-413(a) ☐ YES ☐ NO
- (b) Was your dispensing room for alcoholic and/or malt beverages in existence and open for consumption purposes prior to February 1, 1979? W.S. 12-4-410(b) ☐ YES ☐ NO ☐ N/A

**RESORT LICENSE: Complete questions 9(a) through 9(c):**

9. (a) Is the actual valuation of the resort complex at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO
- (b) Does the resort complex include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO
- (c) Does the resort complex include motel or hotel accommodations with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO

**MICROBREWERY AND/OR WINERY LICENSE: Complete questions 10 through 11:**

10. Is premise to be co-existent with a retail, restaurant, resort or bar and grill liquor license?  
W.S. 12-4-412(b)(iii) ☐ YES ☐ NO
- If "YES", please specify type: ☐ Microbrewery ☐ Winery ☐ Retail  
☐ Restaurant ☐ Resort ☐ Bar & Grill:
11. (a) Do you self distribute your products? ☐ YES ☐ NO
- (b) Do you distribute your products through an existing malt beverage wholesaler? ☐ YES ☐ NO

**ORGANIZATION AND/OR CLUB LICENSE: Complete questions 12 through 15 as applicable:****12. FRATERNAL CLUBS W.S. 12-1-101(a)(iii)(B)**

- (a) The name and address of the grand lodge or national organization is: \_\_\_\_\_
- (b) Does lodge or fraternal organization hold a charter from a national organization or national grand lodge? ☐ YES ☐ NO
- (c) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
- (d) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

**13. VETERANS CLUBS W.S. 12-1-101(a)(iii)(A):**

- (a) The name and address of the National Veterans organization is: \_\_\_\_\_
- (b) Has the Veteran's organization been chartered by the Congress of the United States for patriotic, fraternal or benevolent purposes? ☐ YES ☐ NO
- (c) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

**14. SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E):**

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Have you filed a true copy of your bylaws with the local licensing authority and the Wyoming Liquor Division? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License?  
**(THE PETITION MUST BE ATTACHED TO APPLICATION)** ☐ YES ☐ NO
- (i) Have you filed with the licensing authority and the Wyoming Liquor Division a detailed statement of your activities during the preceding year which were undertaken or furthered in pursuit of the objectives of the club, along with an itemized statement expended for such activities? ☐ YES ☐ NO

**15. GOLF CLUBS W.S. 12-1-101(a)(iii)(D):**

- (a) Do you have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Do you own, maintain, or operate a bona fide golf course together with clubhouse? ☐ YES ☐ NO

- 16. (a) If applicant is an Individual or Partnership:** State the name, date of birth and residence of each applicant or partner, if the application is made by more than one individual or by a partnership.  
If the application is for a Club: State the name, date of birth and residence of each officer.

| True and Correct Name | Date of Birth | DONOT LIST<br>PO BOXES<br>Residence Address No. & Street<br>City, State & Zip | Residence Phone Number | Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year? | Have you been Convicted of a Felony Violation?              | Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages? |
|-----------------------|---------------|-------------------------------------------------------------------------------|------------------------|-----------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------|----------------------------------------------------------------------------------------|
|                       |               |                                                                               |                        | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                                                           | YES <input type="checkbox"/><br>NO <input type="checkbox"/> | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                            |
|                       |               |                                                                               |                        | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                                                           | YES <input type="checkbox"/><br>NO <input type="checkbox"/> | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                            |
|                       |               |                                                                               |                        | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                                                           | YES <input type="checkbox"/><br>NO <input type="checkbox"/> | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                            |
|                       |               |                                                                               |                        | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                                                           | YES <input type="checkbox"/><br>NO <input type="checkbox"/> | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                            |
|                       |               |                                                                               |                        | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                                                           | YES <input type="checkbox"/><br>NO <input type="checkbox"/> | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                            |
|                       |               |                                                                               |                        | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                                                           | YES <input type="checkbox"/><br>NO <input type="checkbox"/> | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                            |
|                       |               |                                                                               |                        | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                                                           | YES <input type="checkbox"/><br>NO <input type="checkbox"/> | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                            |
|                       |               |                                                                               |                        | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                                                           | YES <input type="checkbox"/><br>NO <input type="checkbox"/> | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                            |

(If more information is required, list on a separate piece of paper and attach to this application.)

- (b) If the applicant is a Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership:** State the name, date of birth and residence of each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, and every officer, and every director.

| True and Correct Name | Date of Birth | DONOT LIST<br>PO BOXES<br>Residence Address No. & Street<br>City, State & Zip | Residence Phone Number | No. of Years in Corp or LLC | % of Stock Held | Have you been Convicted of a Felony Violation?                         | Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages? |
|-----------------------|---------------|-------------------------------------------------------------------------------|------------------------|-----------------------------|-----------------|------------------------------------------------------------------------|----------------------------------------------------------------------------------------|
|                       |               |                                                                               |                        |                             |                 | YES <input type="checkbox"/><br>NO <input type="checkbox"/>            | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                            |
| Chester L Halvorsen   | 10/6/75       | 9117 W. 1st Avenue Dr.<br>Cheyenne, WY 82009                                  | 307-574-2457           | 1                           | 100             | YES <input type="checkbox"/><br>NO <input checked="" type="checkbox"/> | YES <input type="checkbox"/><br>NO <input checked="" type="checkbox"/>                 |
|                       |               |                                                                               |                        |                             |                 | YES <input type="checkbox"/><br>NO <input type="checkbox"/>            | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                            |
|                       |               |                                                                               |                        |                             |                 | YES <input type="checkbox"/><br>NO <input type="checkbox"/>            | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                            |
|                       |               |                                                                               |                        |                             |                 | YES <input type="checkbox"/><br>NO <input type="checkbox"/>            | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                            |
|                       |               |                                                                               |                        |                             |                 | YES <input type="checkbox"/><br>NO <input type="checkbox"/>            | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                            |
|                       |               |                                                                               |                        |                             |                 | YES <input type="checkbox"/><br>NO <input type="checkbox"/>            | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                            |
|                       |               |                                                                               |                        |                             |                 | YES <input type="checkbox"/><br>NO <input type="checkbox"/>            | YES <input type="checkbox"/><br>NO <input type="checkbox"/>                            |

(If more information is required, list on a separate piece of paper and attach to this application.)

**OATH OR VERIFICATION**

(Requires signatures by **ALL** Individuals, **ALL** Partners, **ONE (1)** LLC Member, or **TWO (2)** Corporate Officers or Directors except that if all the stock of the corporation is owned by **ONE (1)** individual then that individual may sign and verify the application upon his oath, or **TWO (2)** Club Officers.) W.S. 12-4-102(b)

Under penalty of perjury, and the possible revocation or cancellation of the license, I swear the above stated facts, are true and accurate.

STATE OF WYOMING )

SS.

COUNTY OF Laramie

Before Me, Chet Halvorsen <sup>Notary Aaron Courtney</sup> (specify)  
(Printed name of Notary or other officer authorized to administer oaths)

a Notary Public, Officer authorized to administer oaths in and for  
Laramie County, State of Wyoming, personally appeared

Chet Halvorsen name he/she being first duly sworn  
(Insert Names)

by me upon his oath, says that the facts alleged in the foregoing instrument are true.



1. [Signature]
2. \_\_\_\_\_
3. \_\_\_\_\_
4. \_\_\_\_\_

My Commission expires: 1-23-16

Witness my hand and official seal:

[Signature]  
(Notary Public or other officer authorized to administer oaths)

Title Notary

Dated: 9-30-15

**REQUIRED ATTACHMENTS:**

- (a) Attach any lease agreements W.S. 12-4-103 (a) (iii).
- (b) If the building is not in existence, an architect's drawing or suitable plans of the room and the premises to be licensed must be attached W.S. 12-4-102 (a) (i).
- (c) A statement indicating the financial condition and financial stability of the applicant W.S. 12-4-102 (a) (vi).
- (d) Restaurant or Bar & Grill Liquor License applicants must include a copy of the CURRENT food service permit W.S. 12-4-407 (a) or 12-4-413 (a).
- (e) Include a drawing of the dispensing room W.S. 12-5-201 (a).
- (f) Check or bank draft as payment for the application and publishing the notice of application (Direct billing is permissible for publication fees) W.S. 12-4-101-4 (a).
- (g) If transferring a license from one ownership to another, a form of assignment from the current licensee to the new applicant authorizing the transfer W.S. 12-4-601 (b).

**ADVERTISING REQUIREMENTS W.S. 12-4-104(a):**

When an application for a license, permit, renewal or any transfer of location or ownership thereof has been filed with a licensing authority, the clerk shall promptly prepare a notice of application, place the notice conspicuously upon the premises shown by the application as the proposed place of sale and public the notice in a newspaper of local circulation once a week for two (2) consecutive weeks. The notice shall state that a named applicant has applied for a license, permit, renewal or transfer thereof, and that protests against the issuance, renewal, or transfer of the license or permit will be heard at a designated meeting of the licensing authority.

| FOR LIQUOR DIVISION USE ONLY |          |      |
|------------------------------|----------|------|
| Reviewer                     | Initials | Date |
| Agent:                       |          |      |
| Chief:                       |          |      |
| Acct.:                       |          |      |

September 30, 2015

The Honorable Richard L. Kaysen  
Mayor of City of Cheyenne  
2101 O'Neil Avenue, Room 310  
Cheyenne, WY 82001

Re: New Cheyenne Retail Liquor License

Dear Mayor and City Council,

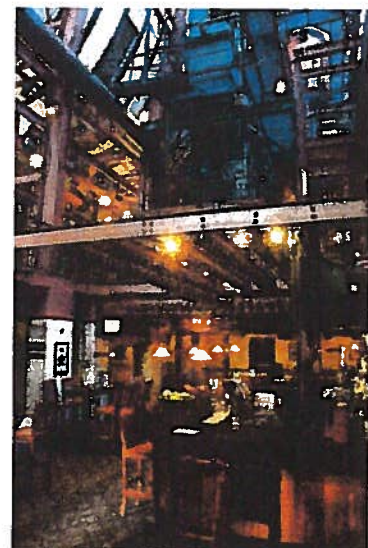
I am applying for the available Retail Liquor License, from the City of Cheyenne. I am interested in opening an establishment that will serve the city of Cheyenne, from the location of 800 West 17<sup>th</sup> Street (legal description is All of City Block 349, Original City, except N1/2 of Lot 1). This property is known as the old Steam Plant, is in the early stages of renovation, and I would plan to open the new business when the renovations have been complete. I expect this to happen within two years, based on construction timeline estimates.

I am a founding partner of West Edge Development CO, LLC – and our company has the property under a legal contract to purchase; with an expected closing date of January 7<sup>th</sup>, 2016. Our company was founded for the sole purpose of purchasing, renovating, and renting historic properties within the city of Cheyenne. The retail liquor license, as well as the drinking establishment, would be owned by my personal company; Chet Halvorson Properties, LLC (of which I am the sole member).

The vision I have for the establishment is a business that offers coffee in the morning and afternoon, a casual lunch from 11:00 AM to 3:00 PM, Happy Hour from 4:00 PM to 7:00 PM, an upscale lounge until Midnight, with outstanding dinner food available from 4:00 PM until 10:00 PM.

The steam plant property is both a catalyst site and an anchor development for Cheyenne's West Edge District. Its renovation will bring an incredible level of energy to the West Edge and lead to a furthering of private investment into the City's near west side. We were drawn to this property as much by its iconic presence on the west side as by the incredible West Edge District vision and the City's efforts in advancing Civic Center Commons and Pump House Park. We further recognized the importance the steam plant has on the re-making of the BNSF rail spur, incorporating a pedestrian corridor with outdoor dining and special events in the heart of the West Edge.

The success of our project will, in large measure, dictate the overall success of the West Edge and, in particular, the redevelopment of the BNSF/Reed Avenue corridor into an area supporting loft living, mixed-use development, and artisan/retail shopping unlike anything Cheyenne has currently. The pictures shown in this cover letter are of a similar steam plant renovation in Spokane, Washington that has served to energize



development of an older industrial area of the City into a popular entertainment district.

The following points should be mentioned in support of our proposed use of the City's Retail Liquor License:

**1) Building on previous City plans and efforts -**

Over the past several years, several related City efforts have all aimed toward revitalizing the West Edge including investments in planning, streetscape, utility upgrades, and events aimed to strengthen downtown overall by repurposing historic buildings and regaining activity on vacant sites. This facility will be physical proof that these investments are providing results and driving private development interests within the West Edge District.

The Greater Cheyenne Chamber of Commerce supported a public process to develop a vision for the Cheyenne area, resulting in the creation of Vision2020. This vision describes the importance of the community's history, image and quality of life. The reuse plan for the steam plant provides important aspects of all three of these pillars by saving an important historical and architectural icon from the neighborhood and providing tenant services that will fill a void for residents seeking a broader range of shopping, dining and entertainment opportunities.

PlanCheyenne, the City's Community Plan adopted April 2014 points to many goals that this type of project will help to advance. In particular, it identifies seven foundations of the vision. The steam plant reuse project helps achieve these foundational goals in the following ways.

**Foundation 1 – Growing as a Community of Choice**

- Provides growth in a way that provides opportunities for people of all generations and retains traits that make it livable and will attract businesses and economic development.
- Expands the variety of housing options available to residents.
- Improves quality of life in the West Edge neighborhood.
- Provides new employment and retail services.
- Provides the opportunity for arts and cultural activities that enrich residents and support tourism.
- Helps establish distinct urban neighborhood character for the West Edge District.



**Foundation 2 – Creating Livable Hometown Neighborhoods**

- Provides options for housing including workforce housing within the Downtown District.

**Foundation 3 – Fostering a Vital Economy and Activity Centers**

- Provides business development within the West Edge District.
- Helps establish the West Edge District as a new mixed-use activity center for the City of Cheyenne.
- Provides jobs and services to help establish the West Edge District as a vital, safe and livable neighborhood.

**Foundation 4 – Developing a Connected and Diverse Transportation System**

- Developed in a mixed-use, pedestrian-friendly manner which supports and improves transit, bicycle and pedestrian mobility throughout the West Edge District and the greater Cheyenne area.

#### Foundation 5 – Celebrating our Character and Varied Heritages

- Preserves a distinctive historic structure and historic Downtown character.
- Creates public plazas, gathering places and sidewalk café spaces along the new Reed Avenue pedestrian corridor identified in the Cheyenne West Edge Area-Wide Plan.
- Plans to support and host cultural events.

#### Foundation 6 – Creating a Legacy of Parks, Open Spaces and Trails

- Will develop retail and restaurant opportunities along new trails located within the Reed Avenue Corridor that connect to the greater Cheyenne Greenway. These new destinations will provide additional motivation for users to utilize the Greenway system, and will spur future development along the corridor which further enhances the trail system.

#### Foundation 7 – Developing in a Fiscally Responsible Way

- Investment in this area takes advantage of existing underutilized access and utilities relative to the cost to the City for comparable development on undeveloped “greenfields” that require significant investment in roads and utilities to service.

2) Zoning - The current zoning is LI- Light Industrial, which is not conducive to the desired mix of uses in a revitalized facility. We are proposing a rezone to allow for broader uses including bar/lounge, restaurant, and package retail store specializing in Wyoming wineries, distilleries, and breweries as a target market. Full revitalization of the steam plant could include office, retail, entertainment and residential components which would necessitate a flexible zone such as MUB - Mixed Use Business. Should the application receive favorable consideration, we would anticipate one condition would be successful completion of the rezone process. Although CB - Community Business zoning exists just south of the site, a mixed use category would enable a broader cross-section of uses to choose from and fit much better with the overall goals of the West Edge District vision.

Over time, based on the early studies and community outreach input, housing and mixed-use commercial uses are highly desirable within the West Edge to support the growing technology, civic and office job sector, and provide a wider variety of housing options within an area that is walkable and close to a range of services and amenities. The Steam plant site is at a key pivot point that would help act as a catalyst for subsequent development activity in that area and poised to have a significant positive impact on the entire West Edge District.

3) Parking - At this stage, parking is unlikely to be a major concern, however as the building begins to rejuvenate, additional uses could bring along additional demand. Parking is anticipated to be handled via the following: a) On-street parking credits totaling approximately 50 spaces with a combination of parallel and diagonal configurations, b) approximately 100 spaces could be constructed on-site following, with some area required for stormwater detention facilities. Based upon the largest restaurant footprint of 5,000 square feet and a requirement of 20 spaces per 1,000 square feet, the facility could easily handle the restaurant and additional uses. An additional 12,000 square feet of office would require approximately 40 spaces, still

easily accommodated by the site. When considering share parking efficiencies, the site can readily accommodate sufficient parking for the restaurant and many other possible uses.

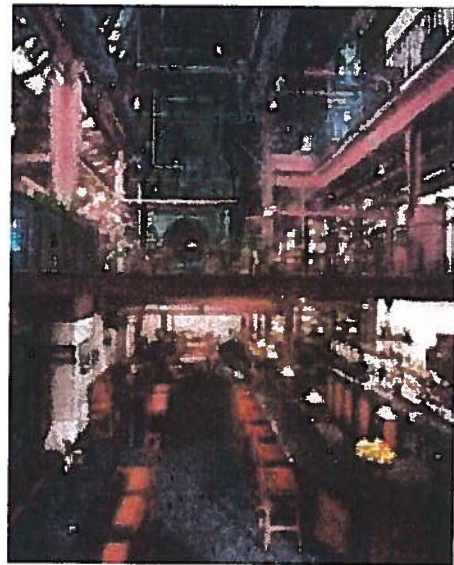
4) Retail License vs. Bar & Grill - The proposed business model for supporting the revitalization of the Steam Plant is based on a number of income streams made possible through the Retail license. First, we anticipate opening a specialty package component focusing on Wyoming-made products. When visitors and locals want to shop local, we want the Steam Plant to be their first stop. Without a retail license, this element of our business model will be impossible. Second, our business will be focused on bringing great food to the Capitol City and beyond, supplementing our sit-down restaurant with catering services. Third, with the recent success of EdgeFest, it is evident that music is in the heart of this District's revitalization. We see the potential to eventually add live music (in some configuration) to the facility, thus necessitating the retail license. These components will add significantly to our solvency in bringing the Steam Plant back to life.

5) West Edge Landmark - The Steam Plant has become a landmark of the future vision for a successful and thriving West Edge District. We are excited by the community's vision and see our renovation spurring additional redevelopment and investment in the area. Our timing coincides nicely with the construction of Civic Center Commons and Pump House Park, which we view as essential public investments that will create another draw to encourage Cheyenne residents to rediscover this exciting neighborhood.

The West Edge District vision is not just about renovating and remaking the remaining iconic structures on the near west side, but creating a district where we can foster mixed-use development, loft living, a high-tech business environment, year-round unique special events, and an area where artisans and craftsmen set up shop so that we can retain our young professionals, living, working, and playing in Cheyenne's West Edge.

The addition of outdoor seating and a restaurant use creates a friendly neighborhood setting attracting more pedestrians and supporting other area businesses.

Attached is our application for Cheyenne's Retail Liquor License along with the required attachments to the application (a), (b), (c), (e), and (f).



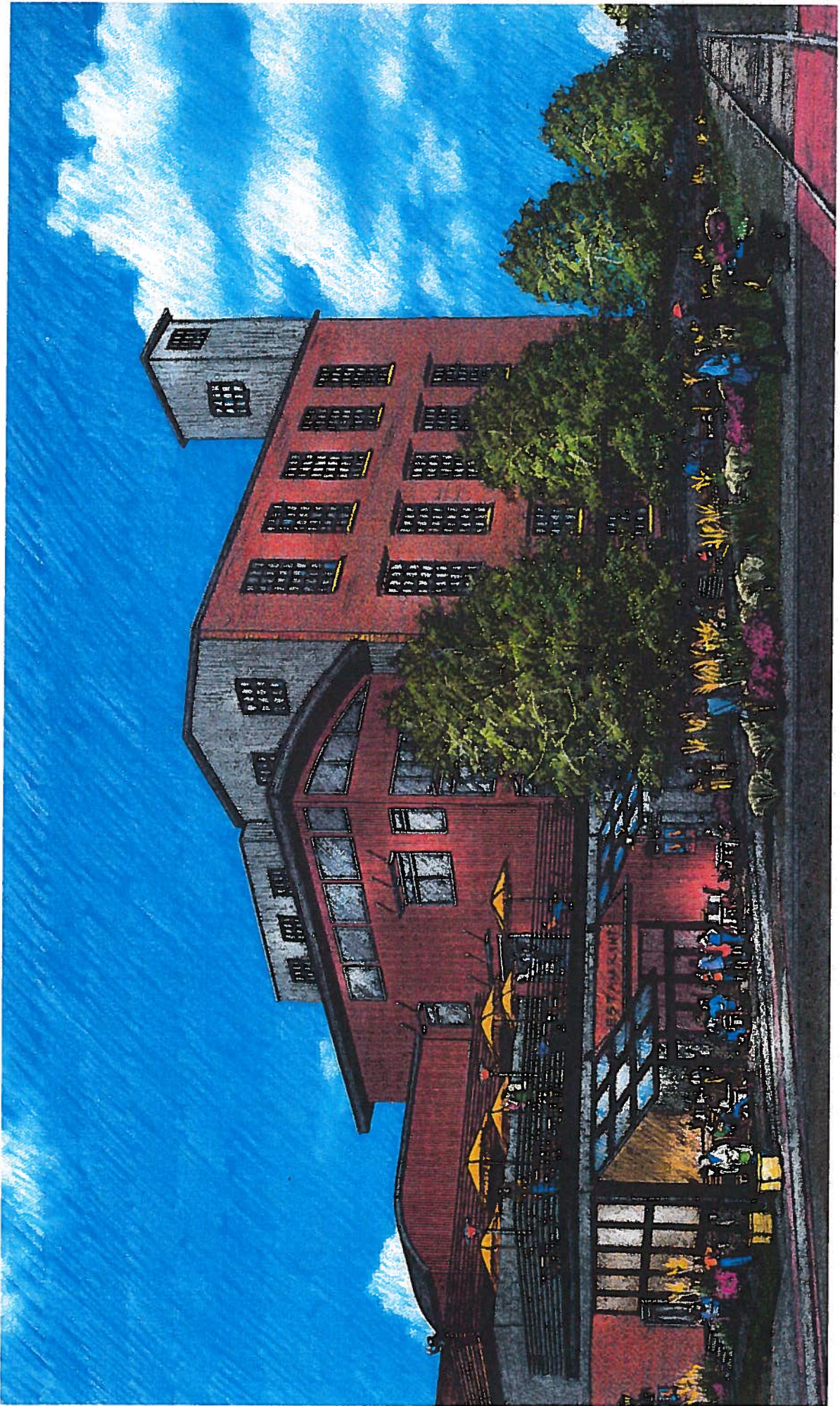
In closing, I would like to thank you all for the consideration of my proposal. The addition of the business I am planning would have a great effect on the West Edge and Downtown areas, and could become a real draw to people from all over the area. With the planned renovation of the entire West Edge, I believe that people will come to spend time in the area; and having a business such as this one will really give them a reason to stay. This will also be a business that will serve the people who already live and work in the area – as well as future residents and workers. In addition, with this business as an anchor, the planned renovation of the Steam Plant will be able to move forward, quickly. Lastly, this will be a new business, so it will be adding new jobs to the area.

I have been involved in the commercial real estate business for over ten years, and I have developed or renovated properties in every city I have resided in. Since my family moved to Cheyenne, in 2011, I have been trying to start some projects in Cheyenne; as I know that we will be Cheyenne residents for a very long time. I am very excited by the fact that we have found a historic property that I believe to be economically viable to our business, and beneficial to the community. I believe this will be a great step forward in the overall desire to build a better Cheyenne for the future.

Again, Thank You,

A handwritten signature in black ink, appearing to read 'Chet Halvorson', with a stylized, flowing script.

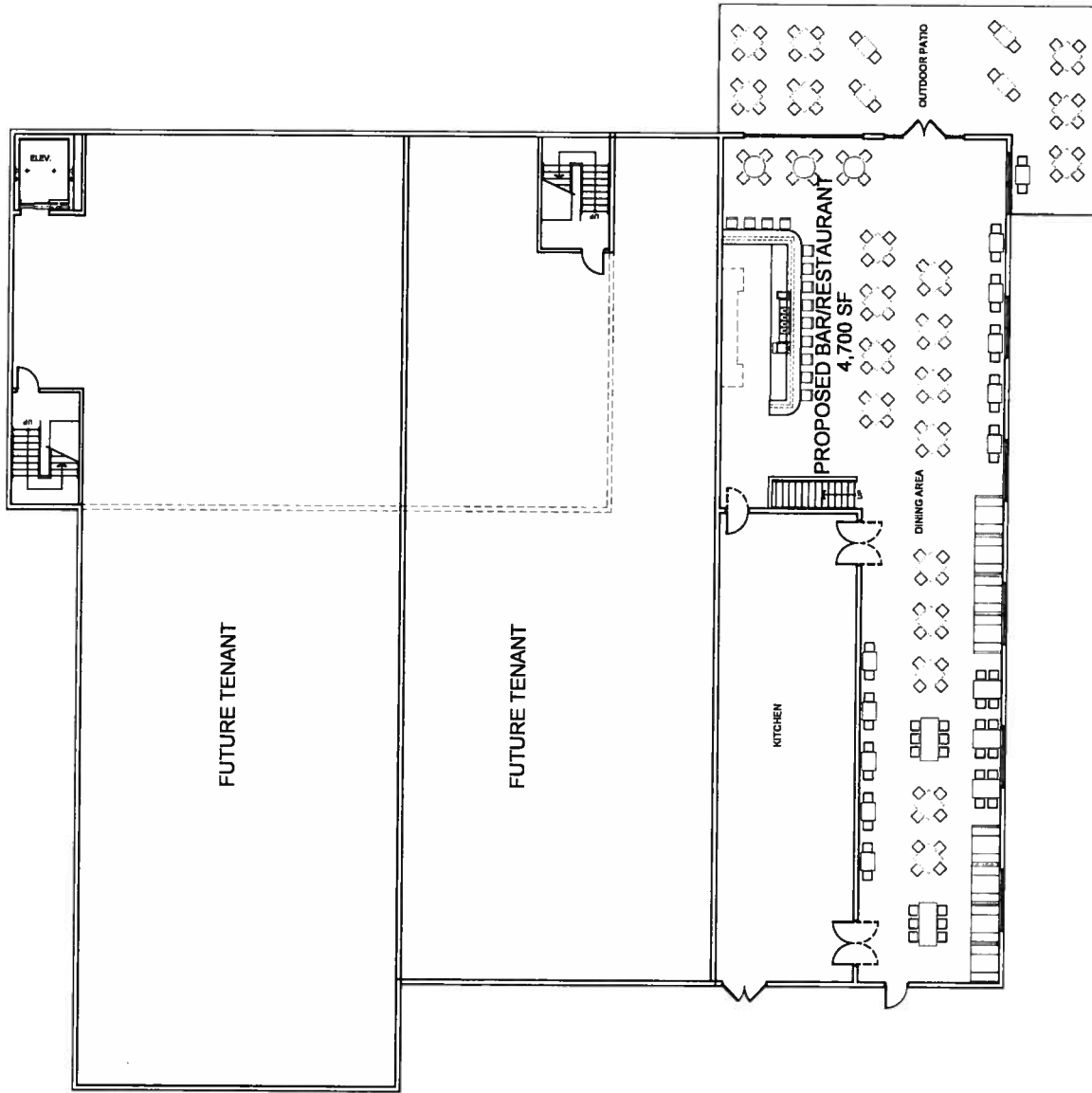
Chet Halvorson





**AYRES**  
**ASSOCIATES**  
28 SEPTEMBER 2015

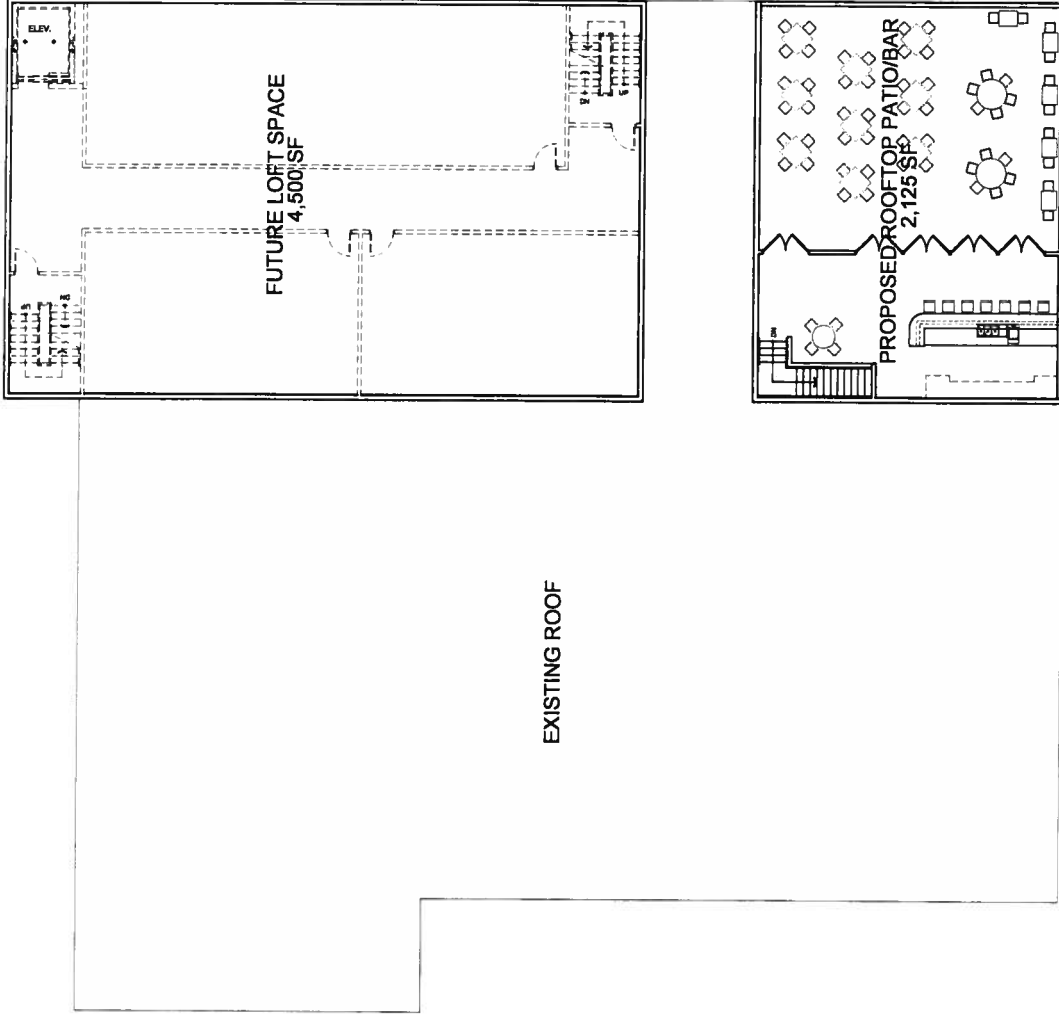
4 SITE PLAN - 16,800 SF  
A1 SCALE NTS



**AVRES**  
ASSOCIATES  
2 SEPTEMBER 2015

1 PROPOSED MAIN FLOOR PLAN - 16,800 SF  
A1 SCALE 1/8" = 1'-0"

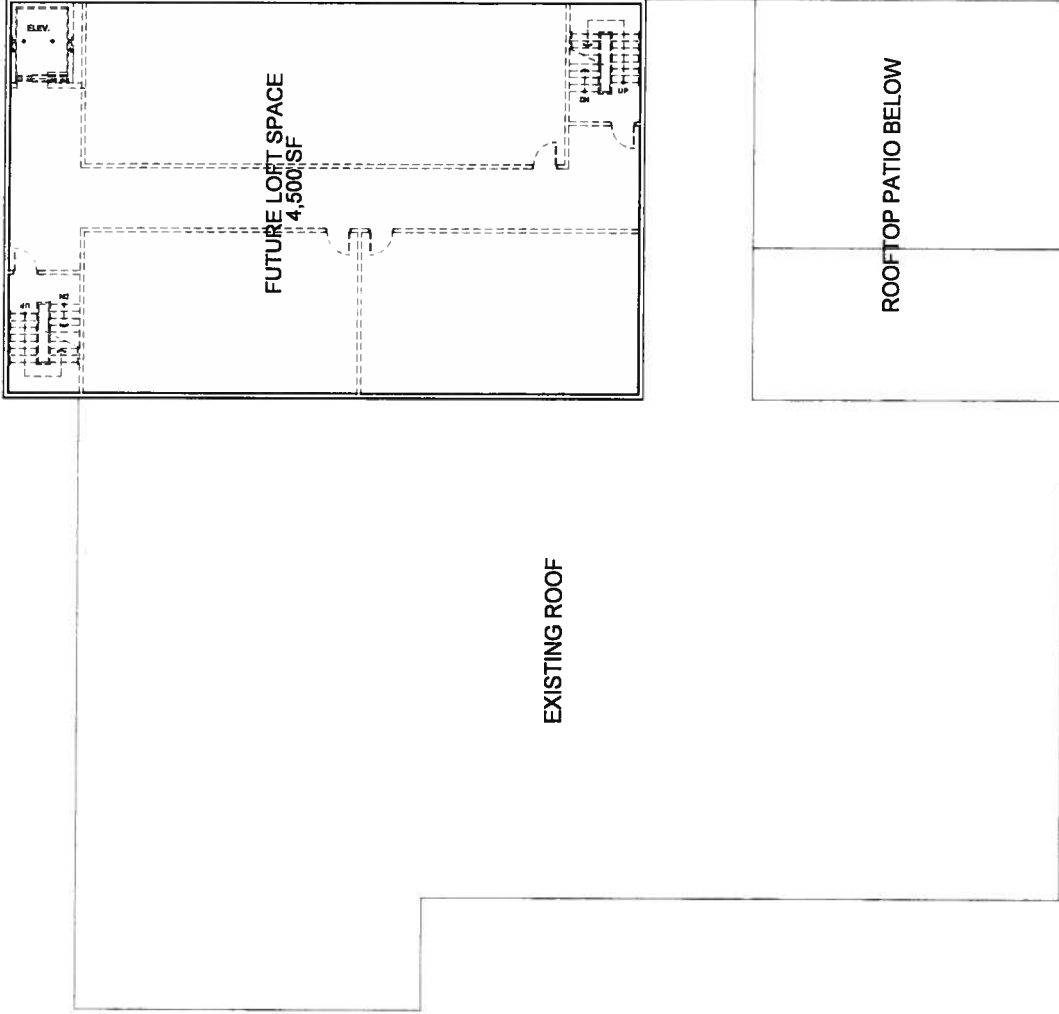
EXISTING RAILROAD SPUR



2. PROPOSED SECOND FLOOR PLAN  
SCALE 1/8" = 1'-0"



29 SEPTEMBER 2015



3 PROPOSED THIRD FLOOR PLAN  
A1 SCALE 1/8" = 1'-0"



21 SEPTEMBER 2013

**STATE OF WYOMING**  
**Office of the Secretary of State**

I, MAX MAXFIELD, SECRETARY OF STATE of the STATE OF WYOMING, do hereby certify that the filing requirements for the issuance of this certificate have been fulfilled.

**CERTIFICATE OF ORGANIZATION**

**Chet Halvorson Properties, LLC**

Accordingly, the undersigned, by virtue of the authority vested in me by law, hereby issues this Certificate.

I have affixed hereto the Great Seal of the State of Wyoming and duly executed this official certificate at Cheyenne, Wyoming on this **14th** day of **November, 2014**.



Filed Date: 11/14/2014

  
Secretary of State

By: Dave Barker



## Letter of Good Standing

**Re: Chet Halvorson**

To Whom It May Concern:

Please accept this Letter of Good Standing as an account of my experience with Chet Halvorson and Chet Halvorson Properties, LLC. I have served as Mr. Halvorson's Loan Officer for nearly seven years. In that time, I have assisted him with management of deposit accounts and several loan transactions.

Mr. Halvorson has always maintained his accounts in good standing. There is no history of insufficient funds or late payments. In fact, Mr. Halvorson often maintains significant balances in his accounts.

Therefore, I can attest to the good standing of Chet Halvorson and his business accounts related to Chet Halvorson Properties, LLC. Please feel free to contact me should you require additional information.

Sincerely,

Michele DeHoff  
AVP / Commercial Lender  
(307)773-7821 - Direct



**First Interstate Bank**  
222 South Gillette Avenue  
P.O. Box 3004  
Gillette, WY 82717-3004  
307-682-5144  
[www.firstinterstatebank.com](http://www.firstinterstatebank.com)

September 30, 2015

To Whom It May Concern:

Chet Halvorson is a valued customer of First Interstate Bank.

Chet has banked with First Interstate Bank for 19 years. During this time, he has handled all his deposit accounts in a professional manner. All loans are rated excellent in terms of repayment, with early repayment common. He is quick to respond to any correspondence. History supports a strong and stable borrower.

If you have any questions, please contact me at 307-686-4737.

Sincerely,

  
Karen Johnson

Vice President/Commercial Lender

## PROPOSED LEASE

THIS LEASE, Made and entered into this 28th day of September, 2015, by and between **West Edge Development CO, LLC**, a limited liability company, of PO Box 233, Cheyenne, WY 82003, (hereinafter referred to as the "Landlord"), and **Chet Halvorson Properties, LLC**, a Wyoming limited liability company. ( Hereafter referred to as Tenant)

WITNESSETH: that the Landlord, for and in consideration of the rents and covenants hereafter mentioned to be paid, kept and performed by the Tenant, does hereby lease to the Tenant that certain property described as follows, including the buildings thereon:

**Approximately 6,825 total square feet of the property located at 800 West 17<sup>th</sup> Street, in Cheyenne, WY. Space consists of approximately 5,400 square feet of interior space, and approximately 1,425 of outdoor space, located on an rooftop patio.**

TO HAVE AND TO HOLD said buildings for the term and upon the conditions herein stated:

1. **Term.** The term of this Lease shall be for 10 years, commencing upon renovation completion, and terminating at midnight on the last day of the month, ten years after renovation completion.

Tenant may have two (2) consecutive Five (5) year term extensions. Tenant must notify Landlord by certified mail ninety (90) days prior to end of first ten (10) year term of Tenant intent to renew lease. The base rent for the first extension will be \_\_\_\_\_ per month, and the base rent for the second extension will be \_\_\_\_\_ per month.

2. **Rental.** The Tenant hereby agrees to pay as rent for the use and occupancy of said buildings the sum of \_\_\_\_\_ month, payable in advance on the first day of each and every month.

3. **Net Lease.** Notwithstanding anything herein contained to the contrary, it is the intent of the parties hereto that this Lease shall be a Net Lease and that the rent referred to in paragraph 2 above shall be a net rent paid to the Landlord. Accordingly, any and all costs and expenses of every kind relating to the leased buildings which may arise or become due during the term of this lease, including, but not limited to, maintenance, repairs(which are not covered by Warranty), real estate taxes, and utilities, shall be the responsibility of and paid by the Tenant as additional rent hereunder.

(a) Real Estate Taxes will be billed to the Tenant, through an invoice provided by the Landlord and will be due within 30 days, and billed annually. Invoice will include the actual amount paid, and a copy of the check used to pay the item; as proof that the expense was paid by the

(b) Property Insurance will be carried by the Landlord, and will be billed to the Tenant, through an invoice provided by the Landlord and will be due within 30 days, and billed annually. Invoice will include the actual amount paid, and a copy of the check used to pay the item; as proof that the expense was paid by the Landlord.

Landlord shall be responsible for the following at all time during the term of the lease

(a) Roof

(b) Foundation

To the extent that the Landlord is in breach of any of these obligations, Landlord shall cure such breach within (5) business days from receipt of notice or as otherwise agreed to by the parties in writing. If Landlord does not cure such breach, Tenant has right to remedy the breach and set-off or deduct such reasonable costs from the monthly rents

**4. Use of Buildings.** The buildings hereby leased shall be used by the Tenant for purposes of the Tenant's business, and all related operations in connection therewith. The Tenant shall comply with all statutes, ordinances, rules, orders, regulations, and requirements of all federal, state, city, and local governments, and with all rules, orders, and regulations of applicable insurance underwriters which affect the use of the buildings. This lease provides the provision for sale of alcoholic or malt beverages, through any term of said lease.

**5. Representation and Warranties by the Landlord.** The Landlord represents and warrants the following:

(a) The property is in compliance with all state, city and local laws, regulation, ordinances, statues and codes.

(b) The property is in new condition and that Landlord will extend any warranties related to the property to Tenants to repair or replace any non-conforming or defective materials, equipment, fixtures or personal property related to the property.

(c) That the property is free from any hazardous materials. Hazardous Materials shall include any and all substances, pollutants, contaminants, materials or products defined or designated as hazardous, toxic, radioactive, dangerous or regulated wastes or materials or any other similar term in or under any applicable Environmental Laws. Hazardous Substance shall also include, but not be limited to, fuels, petroleum and petroleum-derived products.

To the extent that Landlord is in breach of any of these representations and warranties. Landlord shall cure such breach with ten (10) business days from receipt of notice or as otherwise agreed to by the parties in writing. If Landlord does not cure such breach, Tenant has a right to remedy the breach and set-off or deduct such reasonable costs from the monthly

**6. Alterations and Improvements.** The Tenant may, at its own expense, and exercising reasonable discretion and judgment, decorate, alter and improve the said buildings as it deems suitable for its occupancy, all alteration must be approved by landlord in writing. All improvements to the buildings in the event of the early termination of the Lease as a result of a default by the Tenant, specifically excluding the Tenant's fixtures and equipment, shall remain and become the property of the Landlord.

**7. Signs, Fixtures, Equipment and Personal Property.** The Tenant may at its own risk and expense, erect or place in or upon the buildings such equipment, personal property, fixtures, and signs as it may deem to be suitable or advisable for its occupancy.

**8. Repairs and Maintenance.** The Tenant covenants and agrees to keep and maintain in good order, condition, and repair the interior and exterior of the leased buildings during the term of the Lease, and further agrees that the Landlord shall be under no obligation to make any repairs or perform any maintenance to the leased buildings. The Tenant shall be responsible for all repairs, alterations, or maintenance, including, without limitation, all doors, door checks and operators, windows, plate glass, plumbing, water and sewage facilities, fixtures, electrical equipment, interior walls, ceilings, signs, interior buildings appliances and similar equipment, and heating and air conditioning equipment, and further agrees to replace any of said equipment when necessary.

(a) Upon the conclusion of this lease, for any reason and at any time, Tenant agrees to return the property to similar condition as the property was received at the time this lease began. Any repairs due will be the sole responsibility of the Tenant, and must be approved by Landlord.

**9. Utilities and Assessments.** The Tenant shall be liable for, and agrees to pay, the charges for all public utilities services rendered or furnished to the buildings including water, gas, electricity, sewer, sewage treatment and the like, and municipal and government charges of every kind and nature whatsoever, which may be levied, imposed or assessed against the buildings, or any improvements thereto.

**10. Insurance.** The Tenant shall, throughout the term of this Lease, at its own cost and expense, procure and maintain:

(a) public liability insurance with respect to the Tenant's use and occupancy of said buildings, with limits of at least \$1,000,000 for bodily injury.

All policies of insurance provided for or contemplated by this Lease shall name the Landlord as an insured or additional insured, as its interest may appear, and shall provide that the policies cannot be cancelled without at least thirty (30) days written notice to the Landlord. Each policy shall contain an endorsement waiving all rights of subrogation, if any, against the Landlord. The Tenant shall provide the Landlord with a copy of each policy within a reasonable time following

execution of this Lease. Landlord shall procure any insurance needed to cover the building against loss by fire and extended coverage, in an amount equal to the insurable value thereof.

**11. Inspection.** The Tenant shall permit the Landlord to examine the buildings during reasonable hours.

**12. Assignment and Subletting.** The Tenant may not assign this Lease or any part thereof, or sublet any portion of the buildings, without the express written consent of the Landlord, which consent shall not be unreasonably withheld.

**13. Liability for Loss; Indemnity.** The Landlord shall not be liable for any injury or damages to persons or property sustained by the Tenant or by other persons, including but not limited to guests of the Tenant to the buildings, or any part thereof unless caused by the negligence or breach of obligations of the Landlord, its employees, agents or invitees or a defect on the property that existed prior to Tenant's possession under this Lease. In addition, the Tenant hereby releases the Landlord from any and all liability for any loss or damage caused by fire or any of the extended coverage casualties if solely caused by the Tenant. The Tenant shall defend, indemnify, and hold the Landlord harmless against any and all claims, damages, and lawsuits arising after the occupancy date of this Lease, and any orders, decrees, or judgments which may be entered therein, brought for damages or alleged damages resulting from any injury to person or property, or from loss of life sustained in or about the leased buildings, and the Tenant agrees to save the Landlord harmless from loss or damage of whatever nature, to any person or property caused by or resulting from any act, omission, or negligence of the Tenant, or by any employee or agent of the Tenant unless caused by the negligence or breach of obligations of the Landlord, its employees, agents or invitees or a defect on the property that existed prior to Tenant's possession under this Lease. If Landlord's negligence or breach of its obligations under this Lease causes any orders, decrees, or judgments which may be entered therein, brought for damages or alleged damages resulting from any injury to person or property, or from loss of life sustained in or about the leased buildings, Landlord shall release, defend, indemnify and hold Tenant Harmless from such liability caused by Landlord, its employees, agents or invitees.

**14. Default.** Each of the following shall be deemed a default by the Tenant, and a breach of this Lease:

(a) Failure to pay rent herein specified, or any part thereof, when due, provided such default continues for a period of thirty (30) days after notice in writing.

(b) Failure to keep and perform any of the terms, covenants, conditions, and agreements required of the Tenant, including failure to pay any cost or expense required to be paid hereunder as additional rent, for a period of thirty (30) days after notice in writing.

(c) The abandonment of the buildings by the Tenant, the adjudication of the Tenant as a bankrupt, the making by the Tenant of a general assignment for the benefit of creditors, the taking by the Tenant of the benefit of any insolvency act or law, the appointment of a permanent receiver or trustee in bankruptcy for the Tenant's properties, or the appointment of a temporary receiver which is not vacated or set aside within sixty (60) days from the date of such appointment.

A waiver by the Landlord of any default or breach hereunder on the part of the Tenant shall not be construed to be a continuing waiver of such default or breach, nor a waiver in any manner of a default or breach subsequently occurring.

**15. Termination Upon Default.** In the event of any uncured default by the Tenant after notice, and at any time thereafter, the Landlord may at its discretion take any or all of the following actions:

(a) serve written notice upon the Tenant that the Landlord elects to terminate this Lease upon a specified date. In such event this Lease shall be terminated, by summary proceedings or otherwise, and the Landlord, or its agents, servants, or representatives, may immediately at any time thereafter re-enter and resume possession of the buildings or any part thereof, and remove all persons therefrom, by force or otherwise, without being liable for damages therefore; or,

(b) accelerate the rent owing to an amount totaling the rent for the entire lease term. In this event, the lease will continue in force insofar as liability is concerned for the rent but terminate the right of the Tenant to be on the premises. It is the object and purpose of the provisions herein contained that the Landlord shall be kept whole and shall suffer no damage by way of non-payment of rent or by way of diminution of rent.

(c) re-let the premises to a tenant acceptable to Landlord. In this event, Tenant shall remain liable for the diminution in rent during the lease term.

**16. Miscellaneous Provisions.**

(a) All written notices shall be given by regular mail or e-mail with confirmation of receipt. Notices to the Landlord and the Tenant shall be given at the address given on the first page hereof. The Landlord and Tenant may, from time to time, change such addresses by notifying each other of such change in writing.

(b) The terms, conditions, and covenants contained in this Lease and any amendment or extension thereof shall bind and inure to the benefit of the Landlord and the Tenant, and their respective successors, heirs, legal representatives and assigns.

(d) In the event that any provision of this Lease shall be held invalid or unenforceable, no other provisions of this Lease shall be affected by such holding, and all of the remaining provisions thereof shall continue in full force and effect.

(e) Tenant shall be responsible for all costs and attorney fees incurred by Landlord relating to the enforcement of the terms of this Lease.

**17. Security Deposit.** Upon the signing of this lease, Tenant shall provide Landlord with a Security Deposit, equal to one month's rent (\$\_7,000.00\_\_\_), to secure the faithful performance by the Tenant of all of the terms, covenants and conditions of this lease. Tenant agrees that if it shall fail to pay the rent or the prorated expenses, when due, then said deposit may, at the option of the Landlord be applied to any rent or expenses due and unpaid. Said deposit shall be applied to any damages suffered by the Landlord as a result of Tenant's default of any section of this lease to the extent of the amount of damages suffered. Such security deposit will accrue no interest during the period held by Landlord. The remainder of the security deposit shall be refunded to the Tenant within thirty (30) days of the termination of this lease; provided the Tenant is not in default of any of the terms and conditions of this lease agreement.

**18. Time is of the Essence.** Time is agreed and deemed to be of the essence as to all of the terms, conditions and provisions of this Lease.

**19. Broker's Fees.** The parties agree that the Landlord is liable for and shall pay any and all broker's fees associated with this lease as it relates to the Landlord and Tenant's representation in the execution of this Lease. Landlord agrees to indemnify and hold Tenant harmless for any claims of unpaid broker's fees under this lease

IN WITNESS WHEREOF, the Landlord and Tenant have respectively executed this Lease as of the day and year first above written.

West Edge Development CO, LLC(LANDLORD)      Chet Halvorson Properties, LLC (TENANT)

By: \_\_\_\_\_

By: \_\_\_\_\_

Craig Riley, President

Chet Halvorson, President

STATE OF WYOMING )

: ss.

COUNTY OF LARAMIE )

On this \_\_\_\_ day of \_\_\_\_\_, 20\_\_, before me, a Notary Public in and for said County and State. personally appeared Craig Riley. President of West Edge Development CO. LLC. a limited

liability company, and acknowledged to me that he executed the foregoing instrument on behalf of said limited liability company.

\_\_\_\_\_, Notary Public

Laramie County, Wyoming

My Commission Expires:

COUNTY OF LARAMIE )

On this \_\_\_\_ day of \_\_\_\_\_, 20\_\_, before me, a Notary Public in and for said County and State, personally appeared Chet Halvorson to me known to be the President of the Corporation that is described in and that executed the foregoing instrument, and acknowledged to me that such Corporation executed the same.

\_\_\_\_\_, Notary Public

Laramie County, Wyoming

My Commission Expires: